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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:15-cv-01068-LTB-KLM

Trujillo v. Wal-Mart Stores, Inc.
Assigned to: Judge Lewis T. Babcock
Referred to: Magistrate Judge Kristen L. Mix
Case in other court: Weld County District Court, 2015CV30316
Cause: 28:1441 Petition for Removal- Personal Injury

Date Filed: 05/20/2015
Date Terminated: 01/13/2017
Jury Demand: Defendant
Nature of Suit: 360 P.I.: Other
Jurisdiction: Diversity

Plaintiff**Sean Trujillo**

represented by **Charles Griffith Crichton**
Kidneigh & Kaufman, P.C.
730 17th Street
Suite 635
Denver, CO 80202
303-393-6666
Fax: 303-393-0132
Email: ccrichton@kandkpc.com
ATTORNEY TO BE NOTICED

V.

Defendant**Wal-Mart Stores, Inc.**

represented by **Debra K. Sutton , I**
Sutton Booker P.C.
4949 South Syracuse Street
Suite 500
Denver, CO 80237
303-730-6204
Email: dsutton@suttonbooker.com
ATTORNEY TO BE NOTICED

Ashley Ricketson Larson
Sutton Booker P.C.
4949 South Syracuse Street
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303-730-6204
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Email: alarson@suttonbooker.com
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
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05/20/2015	<u>1</u>	NOTICE OF REMOVAL by Wal-Mart Stores, Inc. from Weld County District Court, Case Number 2015CV30316. (Filing fee \$ 400, Receipt Number 1082-4421777), filed by Wal-Mart Stores, Inc.. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Supplemental Civil Cover Sheet, # <u>3</u> Exhibit A, # <u>4</u> Exhibit B, # <u>5</u> Exhibit C, # <u>6</u> Exhibit D, # <u>7</u> Exhibit E, # <u>8</u> Exhibit F, # <u>9</u> Exhibit G, # <u>10</u> Exhibit H, # <u>11</u> Exhibit I, # <u>12</u> Exhibit J, # <u>13</u> Exhibit K, # <u>14</u> Exhibit L)(Larson, Ashley) (Entered: 05/20/2015)
05/20/2015	<u>2</u>	CORPORATE DISCLOSURE STATEMENT identifying Corporate Parent Wal-Mart Stores, Inc. for Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 05/20/2015)
05/21/2015	<u>3</u>	Case assigned to Judge Lewis T. Babcock and drawn to Magistrate Judge Kristen L. Mix. Text Only Entry (sphil,) (Entered: 05/21/2015)
05/21/2015	<u>4</u>	COMPLAINT against Wal-Mart Stores, Inc., filed by Sean Trujillo.(sphil,) (Entered: 05/21/2015)
05/21/2015	<u>5</u>	AFFIDAVIT/RETURN of Service of Summons & Complaint upon Defendant on 04/21/2015, filed by Plaintiff Sean Trujillo (sphil,) (Entered: 05/21/2015)
05/21/2015	<u>6</u>	Defendant's ANSWER and Jury Demand to <u>4</u> Complaint by Wal-Mart Stores, Inc..(sphil,) (Entered: 05/21/2015)
05/21/2015	<u>7</u>	FIRST AND FINAL NOTICE TO ATTORNEY(S) IN REMOVED, TRANSFERRED OR OTHER CASES: Pursuant to D.C.COLO.LCivR 11.1(a), an attorney who is a member of the U.S. District Court's bar must make an appearance in order to receive notice in any case before the court. The attorney records of the court reflect that the following counsel has not entered an appearance in this case: JENNIFER L. CRICHTON. In order to make an appearance in this case and receive any further notice regarding this case, counsel must file an entry of appearance in this case. Absent any Notice of Entry of Appearance filed, no further direct notices to counsel will be sent. Text only entry. (sphil,) (Entered: 05/21/2015)
05/26/2015	<u>8</u>	NOTICE of Entry of Appearance by Charles Griffith Crichton on behalf of Sean TrujilloAttorney Charles Griffith Crichton added to party Sean Trujillo(pty:pla) (Crichton, Charles) (Entered: 05/26/2015)
05/26/2015	<u>9</u>	NOTICE of Entry of Appearance of <i>Stephen C. Kaufman</i> by Charles Griffith Crichton on behalf of Sean Trujillo (Crichton, Charles) (Entered: 05/26/2015)
06/12/2015	<u>10</u>	ORDER REFERRING CASE to Magistrate Judge Kristen L. Mix by Judge Lewis T. Babcock on 6/12/2015. (ebuch) (Entered: 06/12/2015)
06/12/2015	<u>11</u>	ORDER Setting Scheduling/Planning Conference; Scheduling Conference set for 7/21/2015 09:30 AM in Courtroom A 401 before Magistrate Judge Kristen L. Mix. by Magistrate Judge Kristen L. Mix on 6/12/15. (Attachments: # <u>1</u> Attachment 1, # <u>2</u> Attachment 2, # <u>3</u> Attachment 3) (morti,) (Entered: 06/12/2015)
07/13/2015	<u>12</u>	Proposed Scheduling Order by Plaintiff Sean Trujillo. (Crichton, Charles) (Entered: 07/13/2015)
07/21/2015	<u>13</u>	MINUTE ENTRY for Scheduling Conference held before Magistrate Judge Kristen L. Mix on 7/21/2015. Discovery due by 4/1/2016. Dispositive Motions due by 5/1/2016. Final Pretrial Conference set for 10/4/2016 10:00 AM in Courtroom A401 before Magistrate Judge Kristen L. Mix. FTR: KLM Courtroom A401. (lgale,) (Entered: 07/21/2015)
07/21/2015	<u>14</u>	CIVIL SCHEDULING ORDER: by Magistrate Judge Kristen L. Mix on 7/21/15. (lgale,) (Entered: 07/21/2015)

08/03/2015	15	STIPULATION <i>Stipulated Rule 502(d) Order</i> by Plaintiff Sean Trujillo. (Crichton, Charles) (Entered: 08/03/2015)
08/03/2015	16	STIPULATED RULE 502(d) ORDER by Magistrate Judge Kristen L. Mix on 8/3/15. (lgale,) (Entered: 08/03/2015)
08/07/2015	17	STIPULATION (MOTION) <i>for Entry of Protective Order</i> by Plaintiff Sean Trujillo. (Attachments: # 1 Exhibit Stipulated Protective Order)(Crichton, Charles) Modified on 8/10/2015 to change event into a motion (ebuch). (Entered: 08/07/2015)
08/10/2015	18	MEMORANDUM regarding 17 MOTION for Protective Order filed by Sean Trujillo. Motion referred to Magistrate Judge Kristen L. Mix by Judge Lewis T. Babcock on 8/10/2015. Text Only Entry (ebuch) (Entered: 08/10/2015)
08/11/2015	19	MINUTE ORDER by Magistrate Judge Kristen L. Mix on 8/11/15. Stipulation for Entry of Protective Order # 17 is GRANTED.(lgale,) (Entered: 08/11/2015)
08/11/2015	20	STIPULATED PROTECTIVE ORDER by Magistrate Judge Kristen L. Mix on 8/11/15. (lgale,) (Entered: 08/11/2015)
08/18/2015	21	MINUTE ORDER: Five day Jury Trial set for 1/9/2017 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock. Trial Preparation Conference set for 12/9/2016 at 09:00 AM in Courtroom C401 before Judge Lewis T. Babcock, by Judge Lewis T. Babcock on 8/18/2015. (ebuch) (Entered: 08/18/2015)
10/09/2015	22	NOTICE of Change of Address/Contact Information <i>Sutton Booker P.C.</i> by Ashley Ricketson Larson (Larson, Ashley) (Entered: 10/09/2015)
10/13/2015	23	COURTROOM MINUTES/MINUTE ORDER for proceedings held before Magistrate Judge Kristen L. Mix: Telephone Discovery Hearing held on 10/13/2015. ORDERED: Oral Motion to Compel production of Defendant's claim notes without confidentiality designation is DENIED. FTR: Courtroom A-401. (amont,) (Entered: 10/13/2015)
02/16/2016	24	Unopposed MOTION for Order to <i>Attend Rule 35 Examination</i> by Defendant Wal-Mart Stores, Inc.. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Larson, Ashley) (Entered: 02/16/2016)
02/17/2016	25	MEMORANDUM regarding 24 Unopposed MOTION for Order to <i>Attend Rule 35 Examination</i> filed by Wal-Mart Stores, Inc. Motion referred to Magistrate Judge Kristen L. Mix by Judge Lewis T. Babcock on 2/17/2016. Text Only Entry (ebuch) (Entered: 02/17/2016)
02/18/2016	26	ORDER; Defendant's 24 Unopposed Motion for Rule 35 Examination is GRANTED, by Magistrate Judge Kristen L. Mix on 2/18/16.(morti,) (Entered: 02/18/2016)
09/27/2016	27	Proposed Pretrial Order by Plaintiff Sean Trujillo. (Crichton, Charles) (Entered: 09/27/2016)
10/04/2016	28	MINUTE ENTRY for Final Pretrial Conference held before Magistrate Judge Kristen L. Mix on 10/4/2016. FTR: KLM Courtroom A401. (lgale,) (Entered: 10/04/2016)
10/04/2016	29	FINAL PRETRIAL ORDER by Magistrate Judge Kristen L. Mix on 10/4/16. (lgale,) (Entered: 10/05/2016)
12/08/2016	30	Exhibit List by Plaintiff Sean Trujillo. (Kaufman, Stephen) (Entered: 12/08/2016)
12/08/2016	31	Witness List by Plaintiff Sean Trujillo. (Kaufman, Stephen) (Entered: 12/08/2016)
12/09/2016	32	Exhibit List by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 12/09/2016)

12/09/2016	33	Witness List by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 12/09/2016)
12/09/2016	34	NOTICE of Open Court Entry of Appearance by Debra K. Sutton on behalf of Wal-Mart Stores, Inc. Attorney Debra K. Sutton added to party Wal-Mart Stores, Inc.(pty:dft) (ebuch) (Entered: 12/09/2016)
12/09/2016	35	COURTROOM MINUTES for Trial Preparation Conference held before Judge Lewis T. Babcock on 12/9/2016. Court Reporter: Julie Thomas. (ebuch) (Entered: 12/09/2016)
12/09/2016	36	ORDER pursuant to the trial scheduling conference on December 9, 2016, by Judge Lewis T. Babcock on 12/9/2016. (ebuch) (Entered: 12/09/2016)
01/04/2017	37	Proposed Voir Dire by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 01/04/2017)
01/04/2017	38	Exhibit List by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 01/04/2017)
01/04/2017	39	Proposed Jury Instructions by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 01/04/2017)
01/04/2017	40	Exhibit List by Plaintiff Sean Trujillo. (Kaufman, Stephen) (Entered: 01/04/2017)
01/04/2017	41	Proposed Voir Dire by Plaintiff Sean Trujillo. (Kaufman, Stephen) (Entered: 01/04/2017)
01/05/2017	42	Witness List by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 01/05/2017)
01/05/2017	43	ADVISORY NOTICE OF NONCOMPLIANCE WITH COURT RULES/PROCEDURES: re: 41 Proposed Voir Dire, 40 Exhibit List filed by attorney Charles Griffith Crichton. The s/signature did not match the filers name on the account for which the login and password are registered. DO NOT REFILE THE DOCUMENT. Action to take - future documents must be filed pursuant to D.C.COLO.LCivR 5.1(a) and 4.3(c) of the Electronic Case Filing Procedures (Civil Cases). (Text Only Entry) (dkals,) (Entered: 01/05/2017)
01/06/2017	44	Witness List by Plaintiff Sean Trujillo. (Crichton, Charles) (Entered: 01/06/2017)
01/09/2017	45	COURTROOM MINUTES for Jury Trial Day One held before Judge Lewis T. Babcock on 1/9/2017. Court Reporter: Julie Thomas. (ebuch) (Entered: 01/10/2017)
01/09/2017	46	Jury Strike Sheet - Unredacted - Level 3 - Viewable by Court Only. (ebuch) (Entered: 01/10/2017)
01/09/2017	47	Redacted Jury Strike Sheet. (ebuch) (Entered: 01/10/2017)
01/10/2017	48	COURTROOM MINUTES for Jury Trial Day Two held before Judge Lewis T. Babcock on 1/10/2017. Court Reporter: Julie Thomas. (ebuch) (Entered: 01/10/2017)
01/10/2017	49	TRIAL BRIEF <i>Regarding Constructive Notice Jury Instructions</i> by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 01/10/2017)
01/11/2017	50	TRIAL BRIEF <i>Re: Constructive Notice Instructions</i> by Plaintiff Sean Trujillo. (Kaufman, Stephen) (Entered: 01/11/2017)
01/11/2017	51	COURTROOM MINUTES for Jury Trial Day Three held before Judge Lewis T. Babcock on 1/11/2017. Plaintiff may respond to Defendant's Trial Brief Re Constructive Notice Jury Instructions on or before 1/12/2017. Defendant's documents regarding Plaintiff's misdemeanor conviction for false reporting to the police shall be filed as a Level 1 Restricted Document for in camera review. Under Rule 403, during cross examination Defendant shall not question Plaintiff about his revoked driver's license or medical marijuana use. Defendant's Exhibit I, page 3, shall be redacted to remove any reference to medical marijuana. Lunches shall be provided to jurors during their deliberations.

		Defendant's Oral Motion Under Rule 50(a) for Judgment as a Matter of Law is denied. Court Reporter: Julie Thomas. (ebuch) (Entered: 01/12/2017)
01/11/2017	52	RESTRICTED DOCUMENT - Level 1 regarding misdemeanor conviction for in camera review pursuant to the Courtroom Minutes of 1/11/2017. (Attachments: # 1 Sentence Order, # 2 Colo. Jury Instr., Criminal 8-1:25, # 3 C.R.S.A. 18-8-111) (ebuch) (Entered: 01/12/2017)
01/12/2017	53	COURTROOM MINUTES for Jury Trial Day Four held before Judge Lewis T. Babcock on 1/12/2017. JURY VERDICT received. Judgment shall enter in favor of defendant and against plaintiff. Costs are awarded to defendant. Court Reporter: Julie Thomas. (ebuch) (Entered: 01/12/2017)
01/12/2017	54	Plaintiff Witness List. (ebuch) (Entered: 01/12/2017)
01/12/2017	55	Plaintiff Exhibit List. (ebuch) (Entered: 01/12/2017)
01/12/2017	56	Defendant's Witness List. (ebuch) (Entered: 01/12/2017)
01/12/2017	57	Defendant Exhibit List. (ebuch) (Entered: 01/12/2017)
01/12/2017	58	STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS, by Judge Lewis T. Babcock on 1/12/2017. (ebuch) (Entered: 01/12/2017)
01/12/2017	59	Jury Instructions. (Attachments: # 1 Pages 15-26) (ebuch) (Entered: 01/12/2017)
01/12/2017	60	Jury Note - Unredacted - Level 3 - Viewable by Court Only. (ebuch) (Entered: 01/12/2017)
01/12/2017	61	Redacted Jury Note. (ebuch) (Entered: 01/12/2017)
01/12/2017	62	Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (ebuch) (Entered: 01/12/2017)
01/12/2017	63	JURY VERDICT - Redacted. (ebuch) (Entered: 01/12/2017)
01/13/2017	64	FINAL JUDGMENT in favor of Wal-Mart Stores, Inc. and against Sean Trujillo pursuant to 53 Jury Verdict, by Clerk on 1/13/2017. (ebuch) (Entered: 01/13/2017)
01/25/2017	65	Unopposed MOTION for Extension of Time to <i>File Bill of Costs</i> by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 01/25/2017)
01/26/2017	66	MINUTE ORDER granting 65 Defendant's Motion for Extension of Time to File Bill of Costs, by Judge Lewis T. Babcock on 1/26/2017. (ebuch) (Entered: 01/26/2017)
02/10/2017	67	Proposed Bill of Costs by Defendant Wal-Mart Stores, Inc.. (Attachments: # 1 Exhibit Exhibit A, # 2 Exhibit Exhibit B, # 3 Exhibit Exhibit C, # 4 Exhibit Exhibit D, # 5 Exhibit Exhibit E, # 6 Exhibit Exhibit F, # 7 Exhibit Exhibit G, # 8 Exhibit Exhibit H)(Larson, Ashley) (Entered: 02/10/2017)
03/01/2017	68	STIPULATION re 67 Proposed Bill of Costs, by Defendant Wal-Mart Stores, Inc.. (Larson, Ashley) (Entered: 03/01/2017)
03/02/2017	69	Costs Taxed by the Clerk for amount of \$5,236.37 against Plaintiff Sean Trujillo and in favor of Defendant Wal-Mart Stores, Inc. (ebutl) (Entered: 03/02/2017)

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